

26NNCV02168 26NNCV02168

County: los-angeles

Division: Civil Law and Motion

Department: T

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Case Number: 26NNCV02168 Hearing Date: August 7, 2026 Dept: T

Kevin

Mercado, an individual vs. City of Arcadia

Motion

for Protective Order

Moving Party: Plaintiff

Kevin Mercado

Responding Party: Defendant

City of Arcadia

Tentative Ruling: Grant

in part

RULING

On

June 30, 2026, Plaintiff Kevin Mercado ("Plaintiff") filed the instant motion for a protective order requiring Defendant City of Arcadia ("Defendant") to withdraw and revise its first set of special interrogatories, requests for production, and requests for admission. The propounded discovery consisted of 163 special interrogatories, 122 production requests, and 71 admission requests. In reviewing the submitted papers and evidence from the parties, including the charts comparing the substantive overlaps in the propounded discovery, such as special interrogatories and admission requests in excess of the statutory limits without substantial justification, the Court finds that this discovery is

overwhelmingly duplicative, unduly burdensome, and oppressive, thus demonstrating good cause for a protective order. "The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc. § 2030.090, subd. (b) [authorizing a trial court's discretion in fashioning any protective order that justice requires for interrogatories after a good cause showing]; Code Civ. Proc. § 2031.060, subd. (b) [authorizing similar discretion when a protective order is sought for production requests]; Code Civ. Proc. § 2033.080, subd. (b) [authorizing similar discretion as to admission requests].)

Therefore,

as good cause has been shown, the Court shall issue a protective order requiring Defendant to withdraw and revise these first sets of special interrogatories, requests for production, and requests for admission so as to cure these facially apparent issues. In addition, the revised sets of special interrogatories and requests for admission must not exceed their respective statutory limits under Code of Civil Procedure sections 2030.030 and 2033.030.

Furthermore, once a revised set of requests for admission has been served by Defendant, Plaintiff shall provide a further response to Form Interrogatory number 17.1 as to each of his underlying responses to the revised admission requests, subject to the same responsive deadline applicable to the revised admission requests.

Therefore, as good cause has been shown, the Court shall issue a protective order requiring Defendant to withdraw and revise these first sets of special interrogatories, requests for production, and requests for admission so as to cure these facially apparent issues. In addition, the revised sets of special interrogatories and requests for admission must not exceed their respective statutory limits under Code of Civil Procedure sections 2030.030 and 2033.030. Furthermore, once a revised set of requests for admission has been served by Defendant, Plaintiff shall provide a further response to Form Interrogatory number 17.1 as to each of his underlying responses to the revised admission requests, subject to the same responsive deadline applicable to the revised admission requests. The Court otherwise denies the remaining relief sought by Plaintiff.

With respect to Plaintiff's request

for monetary sanctions, as the Court finds that Defendant lacked substantial justification in opposing the motion, and as the imposition of sanctions would not be unjust under the circumstance, the request for sanctions is granted. However, as the rate and hours attributed to the requested sanctions amount are facially unreasonable, the Court shall impose sanctions in the reduced amount of \$3,600.00, reflecting a reduced hourly rate of \$400.00 applied to a reduced total of 9 hours of work against Defendant and its counsel of record, jointly and severally. Said monetary sanctions shall be paid to counsel for Plaintiff within 30 days of this order.